



Collective Bargaining Agreement (CBA) template
A publication sponsored by the CAPSA Project - Uganda
Nov 2024



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THE REPUBLIC OF UGANDA

IN THE MATTER OF THE LABOUR UNIONS ACT 2006,

IN THE MATTER OF THE EMPLOYMENT ACT 2006, AND

IN THE MATTER OF COLLECTIVE BARGAINING

AGREEMENT

BETWEEN

THE COMPANY/ORGANIZATION

AND

THE UNION

20.....

COLLECTIVE BARGAINING AGREEMENT

This Collective Bargaining Agreement made on this..... day of _____, 20.....

BETWEEN

of P.O. Box, Kampala (hereinafter called the "Company/organization" which expression shall, unless the context otherwise requires, include its successors in title and assigns) of the one part

AND

The Union of P.O.Box....., Kampala (hereinafter called the "Union") of the other part

GENERAL:

Section 1. Affirmation and Preamble

- a. Cognizant of Article 29 and 40 of the Constitution of the Republic of Uganda 1995 as amended, the Labour Unions Act, 2006, the Employment Act 2006 among others, especially on Representation and Collective Bargaining; do hereby agree as follows:-
- b. The Companies shall include among others limited liability companies/,Organizations limited by guarantee companies incorporated and carrying on general merchandise and any other businesses under the laws of Uganda;
- c. The Union is a Labour union duly registered under the laws of Uganda to promote and defend the rights and interests of workers.
- d. The Company /Organization limited by guarantee and the Union hereby do agree to enter into a Collective Bargaining Agreement ("CBA") for workers on all matters concerning the terms and conditions of service.

NOW THEREFORE IT IS HEREBY MUTUALLY AGREED AS FOLLOWS:

Section 2: Definitions and abbreviations

Notwithstanding any other definition or meaning of the dictions herein, the key words in this CBA as here below described and shall stand for the meaning as indicated hereto for the purpose of interpretation of this agreement.

In this Agreement, "CBA" means Collective Bargaining Agreement with direct reference to this very Agreement.

- "Disciplinary Committee" Means that Committee composed of both management and Union representatives that is responsible for discharging and dispensing off disciplinary cases concerning employees.
- "Bargaining Unit" this means the categories of employees that fall within the unionisable grades as opposed to those identified in under management herein.
- "Lay off" means the temporary or permanent cessation of employees' service in circumstances where the Company/ Organization limited by guarantee decides that the circumstances require a temporary reduction of personnel or hours of work.
- "Redundancy" means the involuntary loss of employment arising from a situation where: The Company /Organization limited by guarantee has ceased or intends to cease to carry on the business for the purposes of which the employee was employed or to carry on that business in the place where the employee was so employed;
- "Management" shall refer to the Managing Director/ Directors, General Manager, and branch Managers if any. (Shall be defined according to sectors)
- "Severance Pay" This refers to payment to an employee under the situation where the employer for his/her own reasons terminates the services of an employee who is still willing to continue in employment and has not committed an offence under the circumstances.
- "Resignation" When an employee officially and procedurally stops or terminates his/her contract at his/her discretion/decision
- "Termination" This refers to the situation where either the employer/manager or the employee stops the employment appointment/contract.

- "Violence and harassment" a range of unacceptable behaviours and practices, or threats thereof, whether a single occurrence or repeated, that aim at, result in, or are likely to result in physical, psychological, sexual or economic harm, and includes gender-based violence and harassment
- "Gender-based violence and harassment" Violence and harassment directed at persons because of their sex or gender, or affecting persons of a particular sex or gender disproportionately, and includes sexual harassment.
- "Shop Steward(s)" means a member of the Union elected by other members to represent at the workplace and a "Chief Shop Steward" shall mean the head of Shop Stewards.
- "Retirement" in this agreement shall mean an employee who ceases to work with the company/Organization on the following grounds; Old age of 60 (sixty); Medical grounds and Voluntary basis.
- "Industrial accidents" shall refer to any form of accident that happens in the course of their work. (Refer to the definition as in the workers compensation Act 2000)
- "HIV /AIDS" Human Immunodeficiency Virus / Acquired Immune Deficiency Syndrome
- "TB" Tuberculosis
- "Child Labour" defined as work that deprives children of their childhood, their potential and their dignity, and that is harmful to physical and mental development
- "Migrant workers" a person who moves to another country or area in order to find employment, in particular seasonal or temporary work.
- "Just transition and Climate Change" Just Transition means ensuring efficient and coherent climate change mitigation and adaptation policies and regulations that limit Labour market disruptions and job losses and support for workers and companies impacted by the transition
- "Casual worker" a person who has temporary, as opposed to permanent or regular employment
- "Employer" Is the authority which employs and pays employees for their Labour
- "Employee" a person employed for wages or salary
- "Pandemics" a widespread occurrence of an infectious disease over a whole country or the world at a particular time
- "Workplace" a place where people work
- "Gratuity" a sum of money paid to an employee at the end of a period of employment.
- "Minimum Age" A legal minimum age is the age at which a person is legally permitted to engage in work
- "Human Trafficking/Trafficking in persons" refers to the recruitment, transportation, transfer, harboring or receipt of persons by means of threat or use of force or other forms of coercion of abduction, of fraud, of deception of the abuse of power or a position of vulnerability or of the giving or receiving of the payment or benefits to achieve the consent of a person having control over another person for the purpose of exploitation.

Section 3. Purpose and Scope of the Agreement

- a. The purpose of this Agreement is, in the mutual interest of the Company/ organization and the Union on behalf of the employees, to provide for better terms and conditions of service/ work and improved productivity
- b. The parties agree that the employment relationship between the Organization/ Company and Employees shall be governed by the terms and conditions of service agreed herein.

Note: Interpretation of this agreement shall remain the duty of the Management and the Union where failure to interpret by the parties hereto, the matter may be referred to the registrar of Labour Unions.

Section 4. Information/Communication:

All new employees will be informed about the CBA by either party when their employment commences. This CBA will govern the relationship of such new employees with the Organization/Company if such employees accept to become members of the Union. The job categories in the attached schedule indicate entry points (starting point) for each category of Employees and the length of service.

Section. 5. Existing privileges:

Save as otherwise provided herein, all other privileges provided by the company/ organization shall be maintained.

Section 6. Probation:

New Employees shall be engaged for a probationary period not exceeding six months.

Section 7. Seasonal/casual employees:

The Company /Organization may engage seasonal employees or casual employees in accordance with the law in force.

Section. 8. Effective date and term of the Agreement:

Notwithstanding the date of execution, this agreement shall be deemed to be effective from the date of signing by the parties involved (at the beginning)

Section 9. Salaries/Wages Review

The Company/Organization and the Union agree that when determining the wages/salaries of the Employees/workers, the following principles shall be paramount and have to be considered:-

- The continuity and interests of the Organization/Company, the Union and the Employees;
 - a. Obtain improvement in workers earning whenever possible
 - b. Ensure a higher standard of productivity
 - c. Ensure the principle of equal opportunity in employment irrespective of one's race, sex, creed or color.
 - d. Equal pay for equal work done
 - e. experience and qualification based on the design of the workplace

Section 10. Unionization, Check-Off and Remittances

- a. An employee/worker recruited to occupy a position in any of the unionisable grades may join the Union in accordance with the Labour Unions Act 2006
- b. The Employer shall make monthly deductions from each employee/worker in accordance with the law

Section 11. Representation

The Company/Organization recognizes that it is of mutual benefit for its Employees to be represented by a labour Union, it is therefore hereby agreed that all employees will be informed of this CBA when their employment commences and will be urged to join and remain fully paid-up members of the Union.

Section 12. Job Vacancy and Promotions

- a. Employers shall give first priority to employees who qualify within the company/ organization for any job opportunities
- b. Employer shall consider performance appraisals, qualifications and experience in promotion of employees

Section 13. Protection of female employees

A pregnant woman whose pregnancy is above 6 (six) months shall be exempted from night duty, hazardous and precarious work

Section 14. The Right to Stop and Search Staff

The parties to this Agreement recognize the importance and the right of security personnel of the Organization/Company to carry out the 'stop and search' practice however, it shall be done in the most human and professional manner possible so as to avoid causing embarrassment to the person being subjected to the said search.



RIGHTS:

Section 14. Hours of Work

The normal working hours per week will be 48 (forty-eight) hours for all Employees of the Company.

Section 15. OVERTIME

All hours worked in excess of the agreed daily normal hours of work as per PART TWO; Section 14. Of this Agreement will be deemed to be overtime and shall be paid in accordance with the law

Section 16. Payment of Salaries/Wages

Salaries /wages shall be paid when they are due either by Cheque, bank transfer, cash or any other agreed upon mode of payment.

Section 17. Public Holidays

All Uganda gazetted public holidays and other recognized holidays shall be observed

Section 18. Occupational Health, and provision of personal protective equipment.

The employer shall be responsible for provision of the personal protective gear The workers shall ensure that Personal protective equipment is worn and used in accordance with the instructions provided to them and be responsible for good use of personal protective gear The workers must make sure that personal protective equipment is returned to the provided accommodation after use unless the worker is permitted to take the personal protective equipment away from the work place.

The Company/Organization shall continue to maintain all existing good devices and practices

Employer shall ensure continuous training of employees on OSH related matters

There shall be an OSH committee at the workplace comprised of representatives of management and the union

Section 19. Workplace Harassment and Violence

The Company/Organization and Union agree that they both shall promote best practices that prevent the occurrence of any workplace harassment or violence. In this case, both the Company and Union commit to the following;

- a. Provide information that creates awareness on any violence, assault, harassment situations in the workplace
- b. Regularly sensitise and train staff, branch officials and management on proactive and reactive measures of preventing and addressing instances of violence and harassment in the Company
- c. As far as possible, put in place a committee consisting of representatives of Company and Union to regularly monitor and ensure non-existence of instances of violence and harassment, receive and investigate complaints and periodically advise the Company on reactive measures to undertake/implement
- d. Follow the disciplinary procedures of this Agreement concerning any allegations of violence and harassment in the Company/organization.

- e. Provide guidance through regular department/section meetings on adherence to the appropriate culture and code of conduct in the Company
- f. Draft any further guidelines for the better implementation of this section

Section 20. Minimum Age

The company/ organization should consider minimum age requirements depending on the sector and type of work involved as per the law

- a. Prohibition of Child Labor: The clause should explicitly state that the use of child labor is strictly prohibited within the organization and its supply chains.
- b. Definition of Child Labor: Clearly define what constitutes child labor, including the minimum age for employment, types of work that are hazardous for children, and any exceptions allowed by law.
 - c. Age Verification: Establish procedures for verifying the age of workers to ensure compliance with legal requirements and to prevent the hiring of underage workers.
 - d. Education and Training: Include provisions for promoting access to education and training opportunities for children and young workers to prevent them from engaging in child labor.
- e. Monitoring and Reporting: Define mechanisms for monitoring compliance with child labor laws and reporting any suspected cases of child labor to the appropriate authorities.
- f. Remediation and Support: Outline the support and remedies available to children found to be working in violation of child labor laws, including access to education, healthcare, and other forms of assistance.
- g. Non-Retaliation: Ensure that employees and union members are protected from retaliation for reporting cases of child labor or participating in investigations.

Section 21. Human Trafficking / Trafficking in persons

The company and the union should come up with measures to address workers who are trafficked as per the laws and policies of Uganda;

- a. Prohibition of Human Trafficking: The clause should clearly state that human trafficking in any form is strictly prohibited within the organization and its supply chains.
- b. Training and Awareness: Provision for training programs to educate employees, supervisors, and union representatives about human trafficking, its signs, and how to report suspected cases.
- c. Reporting Mechanisms: Establish clear procedures for reporting suspected cases of human trafficking, including protection for whistleblowers.
- d. Remedies and Support: Outline the support and resources available to victims of human trafficking, including access to legal assistance, counseling services, and other forms of support.
- e. Collaboration with Authorities: Define the organization's commitment to cooperating with relevant authorities in investigating and prosecuting cases of human trafficking.
- f. Monitoring and Compliance: Establish mechanisms for monitoring compliance with the human trafficking clause and conducting regular audits to ensure adherence.
- g. Non-Retaliation: Ensure that employees and union members are protected from retaliation for reporting suspected cases of human trafficking or participating in investigations.

Section 22. Just Transition & Climate Change

Management and the union should negotiate terms around environmental sustainability initiatives in the workplace, such as energy efficiency, waste reduction, and emissions reduction

Section 23. HIV/AIDS & TB

That the Company/Organization and the Union do agree that they both shall promote best practices as per the HIV/AIDS & TB policy in regard to the above.

Section 24. Pandemics/ Epidemics policy

That the Company/Organization and the Union do agree that they both shall promote best practices by establishing relevant policies that are aligned to the national laws, guidelines, regulations and standards.



DISCIPLINARY CODE:

Section 25. Discipline (Warnings and Dismissals)

Schedule 1 of the Employment Act 2006 on Discipline handling shall apply under this section

Section 26. Disciplinary Committee composition

- a. The parties agree that there shall be a disciplinary committee composed of members from Management and representatives from the union
- b. The Chairperson of the Committee shall be from Management.
- c. The composition of this committee shall be gender sensitive.

Other disciplinary sanctions that may be issued to an employee other than the warning letters may include;

- a. Reprimand.
- b. Demotion;
- c. Suspension with half pay under investigation

Termination of employment where the employee commits a similar or identical or another minor offence after all warning letters and suspensions have been issued.

Section 27. Offences and breaches in respect of which Written Warnings may be issued:

Written warnings shall be given for the following breaches, misconduct or offences:-

- a. Absenteeism; Absenteeism refers to the practice of regularly staying away from work without a sound reason at a time when you are expected. Or as otherwise agreed by the parties.
- b. Unscheduled absence: Means any absence from work which is not scheduled with the supervisor in advance.

Absence may also be Inexcusable or Excusable:

- c. Inexcusable absence(s): This refers to repeated absence that is unjustified or that would not cause a reasonably prudent person in the same circumstances to be absent.
- d. Excusable: This refers to absence with a valid cause/reason. (all definitions of offences be shifted to the section of definitions)
- e. Written warnings may be issued in respect of all unexcused absences subject to the decision of the disciplinary Committee depending on each circumstance of the matter in question.
- f. Proven Insubordination: This refers to defiance of authority or refusal to obey lawful orders with proof.
- g. Neglect of duty: Intentionally failing to perform some work that is within your scope.

Neglect of duty involves –

Simple neglect of duty; Simple neglect of duty will constitute the failure to give proper attention to a task expected from an Employee resulting from either carelessness or indifference; and may include, but not be limited to any of the following:

- i. being absent from work without reasonable notice or permission for three consecutive days;
- ii. Sleeping on the duty for no unjustifiable cause;
- iii. Leaving a duty station or assigned responsibility without permission; or
- iv. failing to follow prescribed department or work site policy relevant to job duties and responsibilities.
- v. Any public behavior which has or may have the effect of bringing the Company's reputation into disrepute.

Section 28. Neglect of duty

The company/ organization and the union shall address this as per the law; (Employment Act)

Disciplinary Offenses: The Act lists various disciplinary offenses, including misconduct, negligence, absenteeism, and other acts that may warrant disciplinary action.

Disciplinary Procedure:

- a. The employer must inform the employee in writing of the alleged offense and the date, time, and place of the disciplinary hearing.
- b. The employee has the right to be represented by a representative of their choice during the disciplinary hearing.
- c. The employee must be given the opportunity to present their case and respond to the allegations.
- d. The employer must conduct a fair and impartial investigation into the alleged offense.
- e. The employer must consider any mitigating or extenuating circumstances before deciding on the appropriate disciplinary action.

Disciplinary Actions:

- a. The employer may impose various disciplinary actions, including:
- b. Verbal warning
- c. Written warning
- d. Suspension without pay
- e. Demotion
- f. Dismissal

Dismissal:

- a. The employer must provide the employee with a written notice of dismissal, stating the reasons for the dismissal.
- b. The employee has the right to appeal the dismissal decision.

Record-keeping:

The employer must maintain a record of all disciplinary actions taken, including the reasons for the action and the employee's response.

Procedural Fairness:

The disciplinary procedure must be conducted in a fair and transparent manner, ensuring that the employee's rights are protected.

Section 29. Summary Termination or Dismissal

The following offences when committed by the employee and verified by a competent disciplinary committee may constitute summary termination or dismissal.

- a) Theft of company property
- b) Fraud or dishonest dealing with company property;
- c) Gross insubordination in the performance of an employee's duties.
- d) Physical assault or fighting at workplace.
- e) Bringing dangerous weapons onto the Company premises.
- f) Drug abuse and verifiable intoxication on duty whether of drugs or alcohol
- g) Willful damage of Company property
- h) Prolonged absenteeism without proper cause.
- i) Divulging confidential Company information

Notwithstanding the foregoing provisions, the Company may, in cases deserving of summary termination or dismissal issue a lesser disciplinary sanction to an employee who has been found for committing a serious offence:-

- i. Demotion;
- ii. Suspension with half-pay;
- iii. Termination of employment.

NOTE; Grounds for dismissal shall be within the laws or in consultation between management and unions

Section 30. Suspension for investigation

a. Where it requires Management to make investigations in case of an offence, an Employee may be suspended, such suspension shall be in writing by the Human Resource office and copied to the Chief Shop Steward.

b. Suspension under this Section shall not exceed 4 (four) weeks. The salary of the Employee on suspension may be reduced by half. If after 4 (four) weeks the investigations are not complete, the Employee shall be reinstated to his/her duties. The reinstatement shall not affect the disciplinary procedures and the Employee may as the case may be subjected to a hearing upon conclusion of the investigations.

Suspension as a sanction:

Suspension may be preferred to an employee as a sanction arising from the decision of a disciplinary hearing where the employee is not terminated but rather suspended.

This type of suspension will be on half pay or without pay and for a period not exceeding two weeks.

BENEFITS AND ALLOWANCES

Section 31. Annual Leave

Every Employee shall be entitled to annual leave of not less than 21 working days.

Section 32. Sick Leave

Any appointed/contracted Employee in continuous employment with the Company and who is unable to attend duty because of prolonged illness as recommended by an authorized medical practitioner by the Company or government medical facility, shall be granted sick leave under the following conditions:-

- a. The Employee shall receive full pay for the first 2 (Two) months of illness.
- b. The Employee shall receive half pay for a further 1 (one) month and no pay for one month thereafter.
- c. Upon expiry of the aforementioned period, retirement on medical grounds shall be considered by Management of the Company in consultation with the Union. However, should the Employee recover and be fit to work again, the Company may, at its discretion, consider reinstating such Employee.
- d. An Employee on sick leave shall continue to enjoy his/her seniority in regard to service seniority and accumulation of annual leave.

Section 33. Industrial Accidents

- a. In case of absence from duty as a result of an industrial accident (that does not result into permanent total or permanent partial incapacity) at the work place, full salary/ wages will be paid until the person returns to work in accordance to the Workman's Compensation Act 2000 and/or as may be amended.
- b. Where an accident during the course of employment occurs to an Employee resulting into permanent total or permanent partial incapacity, the Workers Compensation Act, shall become applicable.
- c. In the case of an employee receiving injuries that come under the terms of Workers Compensation Act, all provisions of the Act shall apply, including provisions of the Third Schedule which covers industrial diseases.

Section 34. Maternity /Paternity Leave

- a. A female Employee shall as a consequence of pregnancy, be entitled to a minimum of 60 (sixty) working days maternity leave on full pay in accordance with the law. This leave may be extended at the request of the employee.
- b. For a female employee whose baby passes on shortly after birth, the employee may return to work upon the recommendation of an authorized medical Doctor and also upon written request by the said employee to the Company.
 - c. A male Employee shall, immediately after the delivery or miscarriage of his declared wife/wives, be granted (4) four working days of paternity leave or as per amended law.

Section 35. Compassionate Leave

- a. In circumstances and upon application in writing, an Employee shall be granted compassionate leave for up to period 7 (seven) consecutive days or as may be agreed by the parties.
- b. In the event of loss of an immediate relative, the Employee may be granted compassionate paid leave in the following manner: -
 - If the Employee's family lives in a distant place of hundred kilometers from the workplace, the Employee shall be entitled to 3 (three) days compassionate leave with full pay.
- c. An Employee who intends to take compassionate leave must follow the Company's leave application procedure. In this Article, a close relative shall mean the Employee's recognized spouse (husband or wife), child, father, mother, sister and brother from a nuclear family. In other circumstances, the Employee may at the Company's discretion, be allowed to proceed on an unpaid compassionate leave.

Section 36. Leave for Union Activities

The Company/ Organization and the Union realize the need for a Union with well trained Union officials/ members responsible for executing the affairs of the Union in the interest of both parties hereto and to the nation as a whole and therefore agree that the following leave with pay will be granted by the Company to the Union officials or any of the Employees (Union members) of the Company:

- a. Leave to attend Union business/education shall be applicable to the Union members and such leave shall be with full pay provided that the employer has granted prior permission. Such permission shall not be unreasonably withheld.
- b. As far as operational requirements permit, Employees shall be granted leave of absence to attend Union activities, meetings/workshops at the permission of management, such leave shall not be unreasonably withheld. The Union will give the employer at least forty-eight (48) hours' notice for such leave but in case of an emergency meeting, a notice of twenty 24 hours shall suffice.
- c. Any Employee(s) granted leave under this Section shall not accept employment elsewhere during such period.

Section 37. Study Leave

- a. An employee, who requests for study leave may, at the discretion of the management of the Company, be granted such paid or unpaid study leave.
- b. The Union shall continue to play its mediatory role in cases of disagreement between the management's decision and the Employee's concern.

Section 38. Death Benefits

In the case of death of an employee, the Company shall transport the deceased's body to its place of final rest free of charge and contribute towards decent burial arrangements.

Section 39. Repatriation Allowance/Fees

An employee upon leaving employment and who is eligible for repatriation as in accordance with the Employment Act, 2006; shall be repatriated back to their place of origin by the employer.

Section 40. Cessation of Employment

Any staff member shall cease to be an Employee of the Company/organisation by virtue of the following:

a) Resignation

- i. The company shall consider payment of up to the equivalent of the employees' contractual notice period entitlement to an employee who has served the company for a continuous period of at least five years and who has given a written notice to the employer to resign as per his/her contractual obligation and as provided for in this CBA.
- ii. One month's notice period shall be the minimum for one to qualify for the above entitlement.

b) Termination

Either the Employee or the Company may terminate the employment contract by giving the other party notice or payment in lieu thereof depending on length of service. An employer shall not terminate an employee without first giving a reason.

Lay-off, for purposes of this CBA refers to temporary suspension or permanent cessation of employment of an Employee or group of Employees due to certain positions being cut, dwindling finances, or work not being available.

d) Redundancy may occur in the following two situations:

Where the Company has ceased or intends to cease to carry on the business for the purposes of which the Employee was employed; or to carry on that business in the place where the Employee was so employed; or the fact that the requirements of that business for Employees to carry out work of a particular kind, or for Employees to carry out work of a particular kind in the place where the Employee was employed by the Company, have ceased or diminished or are expected to cease or diminish.

e) Retirement.

An Employee may retire from his or her service in the Company in any of the following circumstances;

- i. Upon an employee making 60 (sixty years); of age (mandatory Retirement)
- ii. Upon an employee being declared medically unfit by a qualified medical practitioner;
- iii. Voluntarily at 50 (fifty) years of age and after working for 10 years;
- iv. Voluntarily after working for 12 years regardless of the employee's age.

f) Severance Pay"

Severance shall be paid as per the Employment Act 2006. The calculation of severance allowance pay shall be 1 month pay for each year worked.

Section 41. Employment cessation Procedures

Procedure for Lay off

- i. The principles of last in-first out shall apply subject to skills, ability to do the job and work record being equal.
- ii. The Company shall give the affected Employee and the Union a written notice or salary and allowances in lieu of the notice as follows:

After six months and up to 5 years service	1(one) month
Over 5 years to 10 years	2(two) months
Ten years and above	3(three) months

iii. During the period of notice the Employee shall as far as it is practicable be entitled to reasonable amount of time off without loss of pay in order to look for alternative employment.

iv. All Shop Stewards shall automatically assume top seniority in which case if layoff occurs, no Shop Steward in spite of this actual period of time worked in the Company shall be laid off until all the other Employees of the Company have been laid off.

v. An offer of re-engagement to an Employee laid off may be made by Management in the event of a suitable vacancy arising within 6(six) months of the date of the Employees lay off except that in certain circumstances, the Employee may be subjected to an interview.

vi. The onus of leaving a forwarding address lies with Employee and if a reply from the Employee is not received within 15(fifteen) days from the date of the Management's notification, the vacancy may be otherwise filled.

c) Procedure for Redundancy

To the extent possible, not less than (1) one month of the intended redundancy shall be given by the Management to the Union and Employee(s) to be affected. The employees to be made redundant shall be paid their benefits in accordance with the matrix in Sec. 36. (b) on Retirement benefits herein below.

Section 42. Termination; Retirement; Lay-off; Redundancy; Resignation; Severance

Benefits

a) Termination Notice

Termination Notice shall be given or paid to a qualifying employee or employer as follows:

During probation	14(fourteen) days
After six months and up to 5years service	1(one) month
Over 5 years to 10 years	2(two) months
Ten years and above	3(three) months

When an Employee is discharged under this Section all entitlements and benefits due to him/her e.g. annual leave, public holidays, overtime, transport allowances, gratuity and repatriation where applicable, shall be paid to the Employee on the date on which the notice expires.

b) Retirement; Lay-off; Redundancy; Resignation Severance

The parties to this agreement hereby agree that for any employee who qualifies for any of the above categories herein (Sec.36 b) herein above shall be paid benefits in accordance to the matrix here below times the number of years the employee has served the company.

This shall mean that the qualifying employee shall be paid the percentage provided of one's annual gross pay times the number of years of service with the company at the employees current pay.

Period worked (Years)	Annual Gross Pay (%)
-----------------------	----------------------

1. Probation to Three (3)

2. Four (4) to Nine (9)

3. Ten (10) to Fifteen (15)

4. Above Fifteen (15)

5. Medical unfitness/ Death

6. Severance Allowance

Note; In case of medical unfitness for employees who have served the company for less than Three Years (3), a 21 days' pay for every year worked shall apply.

Section. 43. Re-engagement after Retirement

Re-engagement of retired staff/Employees on permanent or contractual basis if required, shall only be done at the discretion of an employer/ management. After thorough consultations and agreement with the Union. All retired Employees should not be re-engaged apart from very special circumstances that may be determined by the Management and the Union.

Section. 44. Long Service Awards

a) An Employee who has served the Company/organisation for 5 (five) years or more continuously shall be awarded an official company certificate of recognition of one's long service with the company and a gift voucher based on the length of service worth or its equivalent.

Length of service	Voucher
3-5 years	UGX 500,000
5-10 years	UGX 1M
More than 10 years	UGX 1.5M

Section. 45. Staff Meals

The Company shall provide decent meals to all its Employees whilst on duty.

Section. 46. Traveling on Duty

Management shall provide transport allowance to all employees. Expenses of Employees while traveling on duty.

Section. 47. Out of Station Allowance

a) Out of station allowance shall be paid to an Employee when he/she is required to carry out official duties outside the designated work station in the following manner:-

Facilitation	Amount
Breakfast	UGX
Lunch	UGX
Dinner	UGX
Subsistence allowance	UGX
Accommodation	UGX
Travel expenses	UGX
Total	UGX

Section. 48. Medical Treatment

a. MEDICAL BENEFIT; the company shall provide medical treatment for all employees. To its employees in consideration of the OSH Act, 2006 and the Workman's Compensation Act 2000.

b. The parties to this agreement hereby agree that the company shall engage a recognized medical service provider who shall offer treatment to employees for up to a maximum/ ceiling of UGX.....per employee each year.

c. It is also hereby agreed that employees may also circumstantially be allowed to receive treatment from other authorized medical facilities/ hospitals and present the medical bills thereof for reimbursement consideration under this CBA.

Section 49. Acting Allowance

It is agreed that where an employee acts in a senior position, he/she shall receive xxxxxx of the salary difference between the two salaries.

Section 50. Social Security Fund

The Company and all Employees shall be required to contribute to the National Social Security Fund (NSSF) in accordance with the law.

Section 51. Certificate of Service

- a. When an Employee leaves the Company's services of his own accord, or his/her service terminated under the provisions of this agreement, he/she shall be issued with a certificate of service. He/she will also be issued with a recommendation on request. Certificate of service will include name and address of Employee, name of Employer, dates of commencement and termination of service and type of work performed.
- b. There should be no any negative or ill-reports about the employee.

Section 52. Bonus.

- a. The Company shall provide an annual bonus/incentive depending on the company performance as shall be communicated to the staff at the beginning of each calendar year.
- b. The Company shall provide a Christmas and Idi hampers and in the form of a gift voucher.

Section 53. Dispute Resolution

- a. The parties shall endeavor to settle amicably any dispute or controversy between them arising out of breach of this CBA.
- b. In the event that such measures as may be undertaken by the parties fail to lead to a settlement of the dispute or controversy within 30 (thirty) days, then either party will be at liberty to seek redress in the industrial court.

Section 54. Pandemic or Epidemic or Calamity Situation

- a. That in cases of outbreak of a pandemic and or epidemic which adversely affect part(s) of this agreement, the parties hereto agree that they shall with written notice by either party, mutually engage to review any such aspect of this agreement which may require to be reviewed.
- b. That those changes shall be done to address or mitigate the effects of the situation as caused by the pandemic, epidemic and or calamity as a temporally responsive measure.

SALARIES:

It is the intention of the company/ organisation and the union to operate a salary structure that promotes staff motivation, minimize salary imbalances and promote productivity., as flat as possible to, as well as having employees who are able to multitask/ skill and adds value in various areas in order to bridge the gap between salaries and to reduce the salaries and reduce the salary imbalances amongst staff.

Section 55. Salary Review

Considering the current economic situations that has effects and implications on both the employer and the employees, the parties agreed as follows:

1. The parties to this agreement do hereby agree that the minimum salary for the least paid employee shall be UGX xxx
2. It is also agreed that the company shall provide and maintain an incentive scheme for the staff on a monthly performance target basis.
3. The parties herein further agreed that during the period under review, a Salary structure and grading shall be done and its implementation shall take effect the month 1st January xxx.

The table bellow shall reflect the salaries of the bargaining unite category for the period of this agreement.

Grades	Job title	Monthly salary
Grade 1	GENERAL ASSISTANTS	
	Cleaners, staff cooks, goods packers, off loaders,	350,000/=
Grade 2	shelf stockers, store assistants	
Grade 3	MAINTENANCE STAFF	
	Painters, Drivers, security, assistants	
Grade 4	Electricians, sales, senior drivers,	
Grade 5	ACCOUNTS	
	Marketing assistants, delivery assistants, accountants	
Grade 6	Store managers, accountants, IT Manager	
Grade 7		

4. Considering the current situation that has effects and implications on the employer and employees, the parties agreed that the general increase of salaries for Afri-Fresh shall be affected to employees as per the schedule below.

1. CATEGORY OF EMPLOYEES / SALARY RANGE INCREMENT UGX/%

- i) The beginning salary for the lowest paid in grade one shall be 350,000/=
- ii) UGX 350,000/= to 450,000 iii) UGX 450,001 and 600,000/= iv) UGX 600,000/= and above

5. That there shall be a general salary increment of 10% across board for the year 2022 and 2023 The parties to this agreement further agreed hereto, that this CBA shall be effective from the 1st January xxx for all categories of staff for two years and shall continue in force until otherwise mutually amended by the parties thereto.

Section. 56 MIGRANT WORKERS

It is hereby agreed that all migrant workers who are not top managers will have the liberty to be members of the union for purposes of representation.

Section. 57. Governing Law

This Agreement shall be governed by the laws of Uganda and shall however continue in force until otherwise mutually amended by the parties thereto.

IN WITNESS WHEREOF, the Parties have unto set their respective hands and seals on

.....Day of..... 20..... at (place).

FOR AND ON BEHALF OF:

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FOR AND ON BEHALF OF

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International
Labour
Organization

CAPSA

Funding for the publication, layout, and distribution of this document has been provided through the ILO CAPSA Project, which is funded by the US Department of Labor under Cooperation Agreement number **IL-34203-19-75-K**.